Syllabus

URIAS-ORELLANA ET AL. *v.* BONDI, ATTORNEY GENERAL

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIRST CIRCUIT

No. 24–777. Argued December 1, 2025—Decided March 4, 2026

This case presents the question whether the courts of appeals must apply substantial-evidence review to the Board of Immigration Appeals' determination whether a given set of undisputed facts constitutes "persecution" under 8 U. S. C. § 1101(a)(42).

Petitioners Douglas Humberto Urias-Orellana, his wife Sayra Iliana Gamez-Mejia, and their minor child G. E. U. G. are natives of El Salvador who entered the United States without authorization in 2021. After being placed in removal proceedings, petitioners applied for asylum. Under the Immigration and Nationality Act (INA), the U. S. Government "may grant asylum" to a noncitizen if it "determines" that he "is a refugee." § 1158(b)(1)(A). An asylum seeker qualifies as a "refugee" if he "is unable or unwilling to return" to his country of nationality "because of persecution or a well-founded fear of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion." § 1101(a)(42)(A).

Page Proof Pending Publication

In support of petitioners' applications for asylum, Urias-Orellana testified that he was being targeted by a hitman in El Salvador. The Immigration Judge (IJ) found Urias-Orellana's testimony credible but concluded that it did not establish past persecution or a well-founded fear of future persecution under the INA. The IJ accordingly denied petitioners' asylum applications and ordered their removal. The Board of Immigration Appeals (BIA) affirmed. On petition for review, the U. S. Court of Appeals for the First Circuit also affirmed, holding that, under the substantial-evidence standard of review, the record did not compel a contrary finding.

Held: The INA requires application of the substantial-evidence standard to the agency's determination whether a given set of undisputed facts rises to the level of persecution under § 1101(a)(42)(A). Pp. 543–551.

(a) Section 1252(b)(4) sets forth the scope and standard of review for courts of appeals evaluating IJ and BIA removal orders; subparagraph (B) provides that "administrative findings of fact are conclusive unless any reasonable adjudicator would be compelled to conclude to the contrary." The Court has previously interpreted this provision to prescribe a deferential, "substantial-evidence standard," *Nasrallah* v. *Barr*,

590 U. S. 573, 584, meaning "'such relevant evidence as a reasonable mind might accept as adequate to support a conclusion,'" *Biestek* v. *Berryhill*, 587 U. S. 97, 103. The courts of appeals have split over the extent to which this standard applies to the agency's determination that an asylum applicant has established persecution. Pp. 543–545.

(b) Though the courts of appeals apply varying standards, the Court has already concluded that the persecution determination—including both the underlying factual findings and the application of the INA to those findings—receives substantial-evidence review. In *INS* v. *Elias-Zacarias*, 502 U. S. 478, the Court held that to obtain judicial reversal of the agency's persecution determination, an asylum applicant must show that the evidence presented was "so compelling that no reasonable factfinder could fail to find the requisite fear of persecution." *Id.*, at 484. Congress amended the INA shortly after the Court's decision, but those amendments—and the addition of § 1252(b)(4)(B) in particular—codified the *Elias-Zacarias* standard. The statute as it reads today therefore requires substantial-evidence review. Pp. 545–549.

(c) The Court rejects petitioners' arguments that *de novo* review should apply because § 1252(b)(4)(B) requires deference only for "findings of fact" and no subparagraph explicitly addresses the mixed question of law and fact that is the determination of persecution. However, *Elias-Zacarias* and the subsequent statutory history suggest that Congress meant for the entirety of this "mixed" determination to receive deference under § 1252(b)(4)(B). The Court's decisions in *Wilkinson* v. *Garland*, 601 U. S. 209, and *Guerrero-Lasprilla* v. *Barr*, 589 U. S. 221, are not to the contrary. Those cases addressed whether a mixed question qualifies as a "question of law" exempt from § 1252(a)'s bar on judicial review, 601 U. S., at 212; 589 U. S., at 225; but whether a given issue is treated as a question of law exempt from the INA's jurisdiction-stripping provisions says nothing about the type of review the court must afford to that issue under other provisions of the statute. Pp. 549–550.

121 F. 4th 327, affirmed.

JACKSON, J., delivered the opinion for a unanimous Court.

Nicholas Rosellini argued the cause for petitioners. With him on the briefs were *S. Y. Jessica Hui*, *Gregory G. Garre*, and *Christine C. Smith*.

Joshua Y. Dos Santos argued the cause for respondent. With him on the brief were *Solicitor General Sauer*, *Assist-*

ant Attorney General Shumate, Deputy Solicitor General Gannon, John W. Blakeley, Melissa Neiman-Kelting, and *Bryan S. Beier.**

JUSTICE JACKSON delivered the opinion of the Court.

Petitioners Douglas Humberto Urias-Orellana, his wife Sayra Iliana Gamez-Mejia, and their minor child G. E. U. G. are Salvadoran natives who sought asylum after entering the United States without authorization. An Immigration Judge (IJ) denied their applications and ordered their removal, determining that they had neither demonstrated past "persecution" nor established a "well-founded fear" of future "persecution" as required under the Immigration and Nationality Act (INA), 66 Stat. 163, 8 U. S. C. § 1101(a)(42)(A). After unsuccessfully challenging their removal order with the Board of Immigration Appeals (BIA), petitioners sought review in federal court. The Court of Appeals affirmed the BIA's ruling, holding that "substantial evidence" supported the agency's persecution determination. *Urias-Orellana* v. *Garland*, 121 F. 4th 327, 335–338 (CA1 2024).

Page Proof Pending Publication

We granted certiorari to determine whether the Court of Appeals applied the appropriate standard of review under the INA. We conclude that the statute requires application of the substantial-evidence standard to the agency's conclusion that a given set of undisputed facts does not constitute persecution. Accordingly, we affirm.

---

*Briefs of *amici curiae* urging reversal were filed for the Center for Individual Rights by *Jonathan C. Bond*, *Trenton J. Van Oss*, *Lavi M. Ben Dor*, and *Caleb Kruckenberg*; for Former Executive Office for Immigration Review Judges by *Richard W. Mark* and *Amer S. Ahmed*; for Immigration Law Professors by *Minh Nguyen-Dang*; and for Legal Services Providers et al. by *Ethan Nutter*, *Melissa Crow*, *Robert Pauw*, and *Matthew X. Etchemendy*. Briefs of *amici curiae* urging vacatur were filed for Immigration Law Scholars et al. by *Peter E. Davis*; and for Nancy Morawetz by *Eugene A. Sokoloff*.